

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, July 16, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-01886	Harris Farms, LP vs James Nickel et al.
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Motion to Tax Costs

Plaintiff's motion to tax costs is GRANTED.

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)

Here, Plaintiff is seeking to tax costs as either not allowable or as not reasonable or necessary. Specifically, Plaintiff challenge the costs claimed for fees for electronic filing or service and "other." Plaintiff objects that the \$4,297.49 in fees for electronic filing or service are excessive in light of the actual filing fees of \$467.10 and that postage fees are not allowable. Further, Plaintiff objects that the "other" costs should not include travel expenses when remote appearance was possible, and that the claimed costs of \$1,568.10 are not supported.

Plaintiff has properly objected to the costs claimed. This shifts the burden of proof Defendant who is the party claiming the costs. In opposition, attached as Exhibit A to the Declaration of Matthews are invoices evidencing the costs claimed for the fees for electronic filing or service, and as Exhibit B invoices evidencing costs claimed under the category of "other."

The invoices attached as Exhibit A only account for allowable costs in the amount of \$2,083.14. The amount claimed for Fed Ex are not allowable under Code of Civil Procedure section 1033.5, subdivision (b)(3) as they appear to be postage. The remaining costs of \$2,073.30 are not supported by the attached invoices. Accordingly, Plaintiff's motion to tax No. 14 in the amount of \$2,214.35 is GRANTED.

Costs for appearances at hearings are not expressly approved or prohibited under section 1033.5, subdivision (a) or (b). Therefore, they are discretionary under section 1033.5, subdivision (c). Exhibit B only provides evidence of two (2) invoices for CourtCall at \$72 each, and for travel expenses totaling \$334.57 (\$164.35 and \$170.22). Plaintiff argues that the travel expenses of \$334.57 are not reasonably necessary and should be taxed. Here, it is axiomatic that unless excused by the court a party's appearance at a hearing is reasonably necessary and this court in its discretion will allow those costs. However, Defendant fails to account for the remaining costs claimed in the amount of \$1,089.53 or to provide an explanation as to why they are reasonably necessary. Accordingly, Plaintiff's motion to tax No. 15 in the amount of \$1,089.53 is GRANTED.

Defendant is awarded total costs of \$3,257.56.

25CV-04604 Alma Ramos vs Brandon Ellison

Order to Show Cause Re: Dismissal

Appearance Required.

25CV-06367 Harminder Singh vs Sergio Mora

Motion for Default Judgment Against Defendant Sergio Mora

The motion for default judgment against Defendant Mora is DENIED WITHOUT PREJUDICE.

In general, a plaintiff seeking a default judgment against a named defendant must either (1) dismiss all parties, including unserved Doe defendants, against whom judgment is not being sought, or (2) file an application for a separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment. (See Rules of Court, rule 3.1800.)

Neither was done in this instance. Accordingly, the motion for default judgment is denied without prejudice.
